

# Scopes 2.0



# Contents

|                                   |    |
|-----------------------------------|----|
| The Evolution Teacher .....       | 3  |
| At Home .....                     | 3  |
| At School .....                   | 5  |
| A Decision To Make .....          | 8  |
| Ms. Thompson .....                | 8  |
| Dr. Reed .....                    | 10 |
| Strategy .....                    | 12 |
| Violating the Law .....           | 15 |
| Arrest .....                      | 19 |
| Voir Dire .....                   | 25 |
| Opening Statements .....          | 29 |
| Opening for the Prosecution ..... | 29 |
| Opening for the Defense .....     | 30 |
| Recess .....                      | 32 |
| Prosecution .....                 | 33 |
| Harrison .....                    | 33 |
| Reed .....                        | 34 |
| Defense - Zoe Williams .....      | 40 |
| Reed .....                        | 40 |
| Harrison .....                    | 42 |
| Defense - Dr. Saunders .....      | 45 |
| Reed .....                        | 45 |
| Harrison .....                    | 46 |
| Defense - Congressman .....       | 48 |
| Reed Direct Examination .....     | 48 |
| Defense - Congressman .....       | 56 |
| Harrison Cross Examination .....  | 56 |
| Reed Redirect .....               | 56 |
| Reaction .....                    | 58 |
| Closing Arguments .....           | 59 |
| Harrison .....                    | 59 |
| Reed .....                        | 60 |
| Judge Stone's Charge .....        | 61 |

|                      |    |
|----------------------|----|
| The Jury Room .....  | 63 |
| Day 1 .....          | 63 |
| Day 2 .....          | 67 |
| Unanimous .....      | 71 |
| Jury Returns .....   | 73 |
| The Verdict .....    | 73 |
| Reaction .....       | 73 |
| New Beginnings ..... | 75 |

# The Evolution Teacher

## At Home

Tiny points of light pierced the evening darkness. Sarah's eyes darted from star to star, following her father's outstretched finger. His low voice rumbled like the telescope's motor. "Cassiopeia... Ursa Major... Orion..." Cool grass tickled her bare toes. A breeze whispered through the trees, carrying the scent of pine. Sarah's breath caught as a meteor streaked across the sky, leaving a silver trail. Her small hands gripped the telescope's cool metal. The vastness of the sky made her feel tiny, yet part of something immense. A car horn blared in the distance. Sarah's eyes snapped open, the soft whirl of the bedroom ceiling fan replaced her father's fading voice.

The room was dark. No beeping yet. She stared at the ceiling, tracing cracks in the paint. A star chart hung nearby, edges curled. Dad's messy handwriting labeled constellations. Sarah's lips curved up, then trembled. The bedside clock ticked. Three years since he'd gone. The house had smelled of antiseptic and wilting flowers. Mom's Bible lay open on the kitchen table now, pages dog-eared. Sarah's phone sometimes buzzed with church invites she never answered. She hadn't stepped inside those doors since they'd lowered Dad's casket.

Sarah fumbled for her phone on the nightstand. The screen lit up, illuminating her face in the dim room. A message from Tom: "Good morning, beautiful. You've got this." The corners of her mouth turned up slightly. Her shoulders relaxed a bit. She remembered Tom's arms around her last night, his voice low and steady as they talked until the early hours. His fingers had traced circles on her back as she'd voiced her fears about the coming school year. "I'm proud of you," he'd whispered, his breath warm against her ear. Sarah's thumbs moved quickly across the screen: "Thank you. Love you." She set the phone down and swung her legs over the side of the bed.

Sarah's feet flinched as they touched the cold floor. She shuffled to the kitchen, wincing at each bright light she flicked on. The coffee maker sputtered and hissed. Sarah drummed her fingers on the counter, her mother's words from yesterday ringing in her ears. "Why can't you just teach something else?" The question hung in the air, unanswered. "Science is always

changing anyway.” Sarah’s jaw clenched. She stared at the dripping coffee, remembering how she’d mumbled an excuse and changed the subject. The gulf between them yawned wider with each passing day.

The coffee maker gurgled the last drops. Steam rose as Sarah tilted the carafe, pouring the dark liquid into her mug. She lifted it to her nose, breathing in deeply. Her bare feet padded across cool hardwood to the living room. Books crowded every shelf, their spines a rainbow of colors and textures. Thick biology textbooks leaned against dog-eared novels. Sarah’s eyes lingered on the framed photos. In one, a young girl with unruly curls bent over a microscope. A man’s large hand rested on her shoulder, his face creased with a proud smile. Next to it, an older Sarah in cap and gown. Her mother stood stiffly beside her, lips stretched in a thin line that didn’t reach her eyes.

She pressed the remote and the TV screen blinked on, casting a blue glow across the dim room. A man in a crisp suit stood before the massive columns of the state capitol, microphone clutched in his hand. “Breaking news,” he announced, brow furrowed. “Late last night, lawmakers passed a controversial bill. The new law bans teaching evolution in Tennessee schools and mandates Bible use in classrooms.” Sarah curled into the corner of the couch, her toes digging into the cushions. The bitter aroma of coffee wafted up as she raised the mug to her lips. This was the very thing that she had so feared, and yet it had now come so soon. No one had really expected the legislature to act that quickly. She thought, “That must be how it works when there’s a super-majority.”

The mug trembled slightly in her hands as she leaned forward, eyes wide with disbelief. How could her home state take such a leap backward in time? She glanced over at her desk, the Darwin bobblehead seemed to nod in agreement. Posters of DNA helixes and planets were on the walls, their corners curling slightly. She’d hung them with such pride that first year. Now they felt like faded photographs from another time.

Sarah’s fingers fumbled with buttons as she dressed, her mind whirling with the absurdity of the situation. She recalled how Indiana, in the late 1800s, had nearly passed a law mandating that pi be 3.2 in their state. She could not help but laugh about that. At this rate, she mused, Tennessee’s next law

might require her to teach that the Earth was a flat disk. She had to laugh again, thinking about the Tennessee legislature attempting to dictate the layout of the cosmos.

The corridor was dim as Sarah locked her apartment door. Mrs. Grayson from next door was shuffling towards the elevator. She peered at Sarah over her thick glasses.

“Off to corrupt the youth?” Mrs. Grayson’s voice was sharp.

Sarah forced a smile. “Just off to teach, Mrs. Grayson.”

The elevator dinged. Sarah let Mrs. Grayson enter first, then followed. The ride down was silent. In the lobby, Mrs. Grayson turned to Sarah.

“My grandson is in your class,” she said. “I don’t want him learning any of that evolution nonsense.”

Sarah met her gaze. “I teach science, Mrs. Grayson.”

She walked out before the old woman could respond. The morning air was crisp. Sarah took a deep breath, letting it fill her lungs. Her car sat in its usual spot. The windshield was covered in a light frost. Sarah scraped it clean, her breath forming small clouds in the air.

Sarah’s fingers nervously tapped a rhythm on the steering wheel. Fog curled around the car as she traveled the empty road to Oakville High School. Through the windshield, fields stretched out, blanketed in the mist. She blinked hard, trying to focus. Lesson plans flashed through her mind, each one followed by a question mark. The car rounded a bend. The brick edifice of Oakville High loomed ahead, its familiar silhouette emerging from the mist. Her foot eased off the gas. She pulled into a space in the faculty lot and cut the engine. For a moment, she just sat there, listening to the ticking of the cooling engine. Her chest rose and fell with a deep breath.

## **At School**

She stepped out, gravel crunching under her shoes. Across the half-empty lot, a small cluster of people stood by the school entrance. Their signs bobbed slightly, words like “GOD” and “DARWIN” visible even from a

distance. Sarah's eyes met those of the security guard. She gave a small nod and walked inside, her bag heavy on her shoulder.

The halls were quiet. A few students loitered by their lockers. They fell silent as Sarah passed. She felt their eyes on her back. In her classroom, Sarah set down her bag. She walked to the windows and opened the blinds. Sunlight streamed in, illuminating dust in the air. The posters on the walls stood out in the bright light. Darwin's bearded face stared back at her from above the desk. Sarah touched the poster gently.

"What would you do?" she whispered.

There was no answer, of course. Just the ticking of the clock and the distant sound of voices in the hall. Sarah sighed and turned to her desk. She had work to do.

The teacher's lounge was quiet. The smell of coffee hung in the air. Sarah entered and felt the tension. Eyes turned to her. Some nodded. Others looked away. The history teacher stood by the window. He held his mug tight. He was offering an opinion in low, hushed tones. "It's about time," he said. "Kids need values."

A chair scraped the floor. The Spanish teacher stood. Her face was flushed. She slammed her mug on the table. Coffee sloshed over the rim. "They need facts," she said. "Science. Not fairy tales."

Sarah said nothing. It seemed wiser for the moment to contemplate rather than participate in useless arguments. She poured her coffee. The liquid was dark and hot. She felt the eyes on her back. The clock ticked. The air conditioner hummed. She stirred her coffee slowly. The spoon clinked against her mug. She turned and faced the room. The other teachers watched her, waiting. She took a sip of coffee. It was bitter. She gathered up her books and walked to her classroom.

The bell rang as Sarah reached the classroom door. Students filed in, chattering and laughing. They fell silent as they saw her. Sarah stood at the front of the room, waiting. The last student slid into his seat. The door closed with a soft click.

She looked out at the sea of young faces. Some curious, some wary, all waiting. She thought of her father, of the wonder in his voice as he named the stars. She thought of her mother, finding solace in ancient stories. She thought of Tom, of the closeness growing between them. She thought of Mrs. Grayson and her grandson, of the protesters outside.

Sarah took a deep breath. She picked up a marker and turned to the whiteboard. Her hand was steady as she began to write.



## **A Decision To Make**

Sarah sat in her office, her gaze alternating between the framed photo of her graduating class and the small Darwin statue on her desk. The statue, a gift from her doctoral advisor, reminded her of her own academic journey - years of rigorous study, research, and teaching that had brought her to the brink of a Ph.D. in biology. Only her dissertation remained unfinished, set aside when she chose to pursue her passion for teaching high school science.

She remembered the bright faces in the photo, full of hope and curiosity. Now, those same faces looked to her for guidance in a world that seemed to be moving backwards. The weight of her decision pressed down on her shoulders, heavier for the depth of her scientific knowledge and understanding of what was at stake.

### **Ms. Thompson**

A soft knock on the door broke her reverie. It was Ms. Thompson, the literature teacher. Her kind eyes crinkled with concern as she entered.

"Sarah, how are you holding up?" Ms. Thompson asked, settling into a chair across from her.

Sarah sighed, running a hand through her hair. "I'm not sure, Carol. This new law... it goes against everything I believe in as a teacher."

Ms. Thompson nodded, her expression grave. "I know. It's a terrible situation. But listen, I might have someone who can help. Have you heard of Dr. Reed?"

Sarah shook her head.

"She's a brilliant attorney who specializes in civil liberties cases. She defended a teacher in a similar situation in Kentucky a few years back. I think you should talk to her."

Sarah felt a glimmer of hope. "Do you have her contact information?"

Ms. Thompson smiled, sliding a business card across the desk. "I had a feeling you might need it. Just be careful, Sarah. This won't be an easy fight."

After Ms. Thompson left, Sarah stared at the card for a long moment before turning to her computer. She needed to know exactly what she was up against.

The search results were sobering. Cases of teachers losing their jobs, facing fines, even jail time in some instances. Sarah's stomach churned as she read account after account of careers destroyed and lives upended.

She leaned back in her chair, closing her eyes. The faces of her students flashed through her mind. Bright, eager minds thirsting for knowledge. How could she deny them the truth? But at what cost?

Sarah opened her eyes, her gaze falling on the small statue of Darwin on her desk. It had been a gift from her mentor in college, the woman who had inspired her to become a science teacher in the first place.

"What would you do, old friend?" Sarah murmured, picking up the statue. Its weight felt solid and reassuring in her hand.

She set it down and pulled out a notepad, methodically listing the pros and cons of defying the law. On one side: potential job loss, fines, legal trouble. On the other: standing up for science, protecting her students' right to learn, staying true to her principles.

Sarah reflected on her three years here at Oakville High. Already she had fond memories of former students, such as Emily, who had just been accepted to MIT's biology program. Emily had written to thank her, saying Sarah's evolution unit had sparked her passion for genetics. Then there was Michael, now at Vanderbilt studying paleontology, and Jenna at Duke focusing on ecology. The list went on. Sarah realized her impact extended far beyond her classroom. These students, pursuing science at top universities, were a testament to the importance of teaching evolution properly. She added another item to her list: inspiring the next generation of scientists.

The list of pros and cons was growing longer, but Sarah found her decision becoming clearer with each item she wrote. She couldn't betray everything she believed in, everything she had worked for. Everything those students had worked for.

## **Dr. Reed**

With a deep breath, Sarah picked up her phone and dialed the number on Dr. Reed's card. It rang twice before a crisp, professional voice answered.

"Dr. Reed's office, how may I assist you?"

Sarah's voice was steady as she replied, "My name is Sarah Chen. I'm a science teacher in Tennessee, and I need Dr. Reed's help."

There was a pause on the other end. "May I ask what this is regarding, Ms. Chen?"

Sarah gripped the phone tighter. "It's about the new law requiring the Bible in classrooms and prohibiting the teaching of evolution. I... I plan to defy it."

Another pause, longer this time. Then, "I see. Dr. Reed is currently in a meeting, but I'll have her call you back as soon as possible. Can I get your contact information?"

Sarah provided her details, a mix of nervousness and determination settling in her stomach. After hanging up, she sat back, her mind racing with possibilities and fears.

The rest of the day passed in a blur. Sarah taught her classes on autopilot, her thoughts constantly returning to the impending confrontation. As the final bell rang, she found herself both dreading and eagerly anticipating Dr. Reed's call.

It came just as she was packing up to leave. Sarah's hand trembled slightly as she answered.

"Ms. Chen? This is Dr. Evelyn Reed. I understand you're in need of some legal advice."

Her voice was warm and authoritative, immediately putting Sarah at ease. "Yes, Dr. Reed. Thank you for calling back so quickly."

"Of course. Now, why don't you tell me about your situation?"

Sarah took a deep breath and began to explain. She told her about the new law, her concerns for her students, and her decision to continue teaching evolution despite the potential consequences.

Dr. Reed listened patiently, occasionally asking for clarification. When Sarah finished, there was a moment of silence.

“Ms. Chen,” she finally said, “what you’re proposing is not without risk. I want to be clear about what you might face. In my previous case in Kentucky, both my client and I received threats. It became quite serious - we had to involve law enforcement for our safety. This isn’t just about losing your job or facing fines. There are people who may see you as a threat to their way of life. I need you to understand the full scope of what you’re stepping into. Are you certain you want to proceed?”

Sarah’s voice was firm as she replied, “I must confess that I had not thought about receiving threats, Dr. Reed. However, I refuse to be bullied into silence. Science is too important, and I won’t compromise on teaching it properly. We need to move forward.”

She could hear the smile in Reed’s voice as she responded, “That’s exactly what I hoped you’d say. I’d be honored to represent you in this matter.”

Relief washed over Sarah. “Thank you, Dr. Reed. What’s our next step?”

“First, we need to meet in person to discuss strategy. Can you come to my office tomorrow after school?”

Sarah agreed, jotting down the address. As she hung up, she felt a strange mix of fear and exhilaration. She was stepping into unknown territory, but she knew it was the right path.

## Strategy

The next afternoon, Sarah pushed open the heavy glass door of a modest office building in downtown Nashville, the cool air conditioning a stark contrast to the humid September heat outside. The plaque beside the door read “Reed & Associates, Attorneys at Law.”

Inside, the scent of freshly brewed coffee mingled with the comforting smell of old books. Dr. Reed’s office was a haven of warm wood and leather, walls lined with legal tomes and framed newspaper clippings yellowed with age. The woman herself rose to greet her, a brisk click of heels on the polished floor, her handshake firm and reassuring.

“Ms. Chen, it’s a pleasure to finally meet you,” she said, her voice a smooth alto. “Please, have a seat.”

Sarah sank into the plush armchair, the leather creaking softly beneath her. Dr. Reed settled opposite her, a steaming mug in hand.

“Before we dive in,” Dr. Reed began, her smile softening the sharp angles of her face, “I want you to know that I admire your courage, Sarah. My own high school biology teacher ignited my passion for science. It’s an honor to defend that legacy.”

Sarah’s heart swelled. “Thank you. It means a lot to have someone who understands.”

“I should also tell you,” Dr. Reed continued, leaning forward, the scent of her coffee wafting across the desk, “that the ACLU is very interested in our case. They see it as a crucial test case for academic freedom. They’re willing to cover most of the legal costs.”

Relief washed over Sarah. “That’s... incredible. I was so worried about the finances.”

With that weight lifted, they dove into the legal intricacies. Dr. Reed, her voice now crisp and focused, laid out the landmark cases: *Epperson v. Arkansas*, the cornerstone; *Abington School District v. Schempp*, the Bible precedent; *Edwards v. Aguillard*, the creationism counter.

Sarah scribbled furiously, the scratch of her pen the only sound in the room besides Dr. Reed's steady voice. Occasionally, she'd interject a question, and Dr. Reed would pause, her fingers steeped thoughtfully, before offering a clear, concise explanation.

At one point she said, "You may want to Google *Edwards v. Aguillard*." "It's a 1987 case. The Supreme Court struck down a Louisiana law requiring equal time for creationism if evolution was taught. It's a key precedent for us."

Two hours had flown by, a whirlwind of legal theory and strategic planning. The clock ticked steadily on the wall, its rhythmic pulse a reminder of the urgency of their task.

Sarah asked, "What happens when I teach my next evolution lesson?"

Dr. Reed said, "Good question. We need to briefly address your classroom approach. I have a couple of suggestions that might help minimize conflict. First, always emphasize that you're teaching the scientific consensus, not personal beliefs. Second, if students bring up religious objections, acknowledge their right to their beliefs while redirecting the discussion to the scientific evidence. These approaches could demonstrate your professionalism if we end up in court."

Dr. Reed's expression grew serious. "You'll possibly face disciplinary action from the school board. Also, you will likely be arrested. If that happens, I should be able to post bail within an hour. Whatever happens, I'll be there to represent you every step of the way."

Then Reed smiled warmly. "You're doing a brave thing, Ms. Chen. It's an honor to stand with you in this fight."

As they wrapped up, Sarah's initial anxiety had transformed into a steely resolve.

"The key," Dr. Reed emphasized, her eyes gleaming, "is to frame this as a matter of constitutional rights. We're not just defending your right to teach evolution, we're defending the very foundation of our democracy."

Sarah nodded, her mind buzzing with newfound knowledge and a sense of purpose. The path ahead was fraught with challenges, but she was no

longer alone. She had an ally, a brilliant legal mind, and the backing of a powerful organization.

Leaving the office, the setting sun cast long shadows across the city streets. Sarah took a deep breath of the warm evening air, a sense of determination settling in her chest. Tomorrow, she would walk into her classroom and teach evolution, laws and consequences be damned.

## Violating the Law

Sarah sat at her desk, the empty classroom before her. She glanced at the clock. Tick, tick, tick. Each second felt like an eternity.

Her lesson plan lay open. Neat handwriting. Carefully chosen words. But would it be enough?

She remembered the staff meeting. Tense faces. Hushed voices. The principal's warning: "Be careful. Stick to the approved curriculum."

Sarah's fingers traced the edge of her textbook. The chapter on evolution. Tucked away. Hidden. But not forgotten.

She thought of her students. Their eager minds. Their questions. Their right to learn.

The weight of her decision pressed down. Heavy. Real.

She stood. Walked to the window. Outside, the school flag flapped in the breeze. Red, white, and blue. Freedom. Knowledge. Progress.

A memory surfaced. Her college professor's words: "Science doesn't bow to politics. It seeks truth."

Sarah's jaw set. Her eyes hardened. She was prepared to do what she had to do.

She returned to her desk. Pulled out the evolution chapter. Placed it on top. Where it belonged.

The clock ticked on. The empty room waited. Sarah knew that she was prepared to take a stand. She moved to the front of the classroom. Her hands were steady. She looked at the clock. It was time. The bell rang. It echoed in the empty room. She took a deep breath. The air was cool and still.

The door opened. Students poured in. Their voices filled the space. Laughter. Whispers. The scrape of chairs. Sarah watched them settle. Some looked eager. Others bored. A few seemed nervous. She knew why.

Sarah cleared her throat. The chatter died down. All eyes turned to her. She felt the weight of their gaze. The responsibility. The risk.



“Good morning,” she said. Her voice was clear and firm. “Good morning,” they chorused back.

Sarah nodded. She looked at each face. Young. Open. Curious. She had made her decision and now it was time to proceed.

“Today,” she said, “we begin our unit on evolution.”

The room went silent. A pencil dropped. It sounded like thunder in the quiet classroom. Sarah saw some students sit up straighter. Others slumped in their seats. A girl in the front row bit her lip. A boy in the back frowned.

Sarah continued. “I know there’s been a lot of talk about this topic. About whether we should study it. About the new law.”

She paused. The silence stretched. She could hear her own heartbeat. Fast but steady. She took another breath.

“But science isn’t about laws. It’s about facts. Evidence. Observation. And that’s what we’re going to focus on.”

A hand shot up. It belonged to Johnny Anderson. His face was red. His voice shaky. “But Miss, my parents said...”

Sarah held up a hand. Johnny fell silent. Recalling Dr. Reed’s caution about how to respond to such questions, she spoke gently. “I understand, Johnny. Everyone has their own beliefs. Their own views. That’s okay. We’re not here to change that. We’re here to learn science.”

She turned to the board. The marker squeaked on the board as she wrote ‘EVOLUTION’ in big letters. And below that she wrote “SCIENTIFIC THEORY”. Then, she turned back to the class.

“A scientific theory is a body of knowledge that has been developed over time. It is based on evidence that has been collected, on what we can see and measure. Such a theory is broadly accepted by the scientific community. Evolution is just one such scientific theory. It offers an explanation about how living things change over time. It’s based on evidence that has been meticulously gathered over many, many years. It’s not just a guess or an idea.”

Sarah spoke clearly, concisely. She outlined the basics: natural selection, genetic variation, adaptation. She didn't rush, but she didn't linger. Every word mattered.

Sarah saw some students nod. Others looked confused. She pressed on. Her voice steady. Her words clear.

"Let's start with an example. Something simple. Something you can see."

She walked to her desk. Picked up a jar. Inside were moths. Some light. Some dark. She held it up.

"These are peppered moths. Before the Industrial Revolution, most were light-colored. They blended in with light-colored trees. But as factories spread, the trees got darker. Covered in soot."

Sarah paused. Let the image sink in. She saw understanding dawn on some faces.

"What do you think happened to the moths?"

A hand went up. It was Zoe Williams. Bright eyes. Quick mind. "The dark ones survived better?"

Sarah nodded. "Exactly. The dark moths were harder for birds to see on the dark trees. They lived longer. Had more babies. Over time, there were more dark moths than light ones."

She put the jar down. Looked at the class. "That's natural selection. That's evolution in action."

The room was quiet. But it wasn't the tense silence from before. It was different. Thoughtful. Curious.

Sarah smiled. "Now, let's dig deeper. Let's look at the evidence. The fossil record. DNA. Comparative anatomy."

She started writing on the board again. Dates. Names. Key concepts. The marker squeaked. Behind her, she heard the rustle of paper. The scribble of pens. She turned back to the class.

"Any questions so far?"

Hands shot up. Sarah pointed to a girl in the middle row. “Yes, Jennie?”

Jennie’s voice was soft but clear. “How long does evolution take?”

Sarah nodded. “Good question. It depends. Sometimes it’s very slow. Even millions of years. Other times it’s faster. Like with the moths. Or bacteria becoming resistant to antibiotics. That can happen in just a few years. Sometimes it’s incredibly fast. Consider how the COVID-19 virus mutated in a matter of weeks, creating new variants.”

More hands. More questions. Sarah answered each one. Patient. Clear. Honest when she didn’t know something.

“We’ll find out together,” she’d say.

The class flew by. Before Sarah knew it, the bell rang again. End of period. Students gathered their things. There was a buzz in the air. Excitement. Curiosity.

As they filed out, Sarah heard snippets of conversation.

“That was actually pretty cool.”

“I want to know more about the DNA stuff.”

“Do you think we could do an experiment?”

Sarah felt a weight lift from her shoulders. She’d done it. She’d taught the lesson. Sparked interest. Encouraged questions. It was a start.

But she knew it wasn’t over. There would be more challenges. More questions. Maybe even trouble. But for now, she allowed herself a small smile. A moment of pride.

She turned back to the board. Started erasing the day’s lesson. Preparing for the next class. The next challenge. Marker ink staining her hands reminded her of the moths’ adaptive camouflage.

## Arrest

The bell rang. Sarah walked to her classroom. Students filed in, took their seats. She noticed a few empty chairs. Parents keeping kids home, maybe. She started taking attendance.

A knock at the door. Principal Davis stood there, face grim.

“Sarah, a word?”

She nodded, turned to the class. “Refresh your memories on chapter seven. I’ll be right back.”

In the hallway, Davis spoke low. “There’s a police officer here. You know why.”

“Yes.”

“Sarah, please. Just stick to the approved curriculum. It’s not too late.”

She met his eyes. “It was too late the moment they passed that law.”

Davis sighed. “I can’t protect you.”

“I know. I’m not asking you to.”

She went back into the classroom. Thirty pairs of eyes watched her. She took a deep breath.

“Alright, class. Today we’re going to continue our discussion about evolution.”

A murmur rippled through the room. Sarah saw Zoe Williams sit up straighter, eyes bright.

“Yesterday we discussed peppered moths which were an excellent example of natural selection in action. Their environment changed. Those with beneficial traits survived. They passed those traits to offspring. Over time, the population adapted.”

Sarah noticed movement in the hallway. She continued.

“Now, let’s talk about genetic variation—”

The door opened. Officer Brent stepped in, followed by Principal Davis. The class fell silent.

“Sarah Chen?” Officer Brent said.

“Yes.”

“You’re under arrest for violating the State Education Act, Section 23.1.”

The words hung in the air. Sarah had expected this moment, prepared for it. But hearing it, feeling the cold reality of it, was different.

“Do you understand?” the officer asked.

“Yes,” Sarah said.

Zoe stood up. “This isn’t right!”

“Sit down, Ms. Williams,” Principal Davis said.

Sarah turned to her students. “It’s okay. Remember what we’ve learned. Think critically. Ask questions.”

Officer Brent stepped forward with handcuffs. Sarah held out her wrists.

“Is this necessary?” Davis asked.

“Standard procedure,” Brent replied.

The metal was cool against Sarah’s skin. She looked at her students. Some were crying. Others looked angry. Zoe was on her feet again, fists clenched.

“Remain in your seats,” Davis said. “a substitute teacher will be in shortly to finish today’s class.”

The students sat there in stunned silence. Many glanced back at Sarah. Zoe kept her eyes locked on Sarah’s until the door closed.

Davis handed Sarah an envelope. “You’ve been placed on administrative leave pending the outcome of the investigation and any potential trial. I’m so sorry it’s come to this, Sarah.”

She nodded, sad that there was not really any useful response.

Officer Brent led her out. The hallways were empty. Their footsteps echoed. At the main entrance, a crowd had gathered. Students, teachers, parents. And cameras. So many cameras.

Flashes popped. Shouted questions overlapped.

“Ms. Chen, do you regret your actions?”

“Is this a publicity stunt?”

“What message do you have for other teachers?”

Sarah kept her head high. Didn’t answer. Officer Brent guided her to the patrol car.

As they drove away, Sarah saw Zoe and a group of students holding hastily made signs. “Free Ms. Chen,” one read. “Science isn’t a crime,” said another.

The ride to the police station was silent. Sarah watched her town pass by. People on sidewalks stopped, stared. News traveled fast in Oakville.

At the station, more cameras waited. Sarah was led inside. The booking process was a blur. Fingerprints. Mug shot. Questions.

“Name?”

“Sarah Chen.”

“Age?”

“Thirty-two.”

“Occupation?”

A pause. “Teacher.”

Dr. Reed arrived as they finished. She spoke quietly with Sarah.

“How are you holding up?”

“I’m okay. It’s real now, isn’t it?”

Reed nodded. “Very real. The media’s all over this. You’re trending on Twitter.”

Sarah managed a small smile. “Great. Just what I always wanted.”

“Remember, don’t say anything without me present. We’ll have a bail hearing soon. You’ll be out quick.”

Officer Brent approached. “Time to go, Ms. Chen.”

Sarah stood. Reed touched her arm. “Stay strong. This is just the beginning.”

As Sarah was led to a holding cell, she heard the clamor of reporters outside. She thought of her students. Of Zoe’s determined face. Of the moths, adapting to a changing world.

The cell door closed behind her. Sarah sat on the narrow bed. She closed her eyes and breathed deep. As the silence grew heavy, she found herself remembering her conversation with Dr. Reed last week.

“Are you sure about this, Sarah?” Reed had asked.

“I have to do something. I can’t just let them do this to science.”

“You could lose your job. Your career.”

“I know.”

“There might be legal consequences. Fines. Even jail time.”

Sarah had nodded. “I’m ready to challenge this law.”

Now, in the quiet of the cell, those words echoed. The consequences were no longer hypothetical. They were here, now, real.

Across town, an emergency school board meeting was underway. The members sat around a large oak table, faces grim.

“This is a disaster,” said Board President Johnson. “The media’s having a field day.”

Other board members nodded in agreement. One spoke up, “We had to enforce the law. What choice did we have?”

“But arresting her? In front of students?” another asked, concern evident in their voice.

“The law’s the law,” Johnson said. “We can’t pick and choose.”

“What about the students?” the concerned member pressed. “This is disrupting their education.”

“They’ll get a new teacher,” someone else responded. “One who follows the curriculum.”

Johnson sighed. “Let’s focus on damage control. We need a statement for the press.”

Meanwhile, at the state capitol, news of Sarah’s arrest spread quickly. A reporter overheard two legislators speaking in hushed tones in a corridor.

“This is exactly what we didn’t want,” said one. “A martyr for their cause.”

The other shook his head. “It’s too late now. We’ll have to stand our ground.”

“And if it goes to the Supreme Court?”

“Then we’ll fight it there too.”

As evening fell, the first news reports hit the airwaves:

“Local teacher arrested for teaching evolution, sparking nationwide debate...”

“Controversy in Tennessee as educator challenges new education law...”

“Science vs. State: The battle over what can be taught in classrooms...”

Two hours later, the cell door swung open. “Sarah?” a voice called out.

Sarah looked up to see Dr. Reed standing there, a smile on her face. “Let’s get you out of here.”

Behind Reed stood Tom, Sarah’s boyfriend. Relief washed over Sarah’s face.

The process was quick. Reed had already taken care of the paperwork. Soon, Sarah was walking out of the police station, flanked by Reed and Tom. A throng of reporters surged forward, cameras flashing and questions flying.

Reed held up a hand. “No comment at this time. Please give Ms. Chen some space.”

They hurried to Reed’s car, Tom holding Sarah’s hand tightly. As they pulled away, Sarah glanced back at the chaotic scene.



“Thank you,” she said, her voice thick with emotion.

“Don’t thank me yet,” Reed replied. “The fight’s just beginning.”

Back at Reed’s office, they sat in a tense silence. Finally, Tom spoke.

“Are you okay?” he asked Sarah, his voice filled with concern.

Sarah nodded slowly. “I’m okay. Just tired.”

Reed looked at them both. “Go home, get some rest. We’ll talk strategy tomorrow.”

Tom and Sarah left, the weight of the day heavy on their shoulders. As they drove through the quiet streets, Sarah’s thoughts drifted back to her students. She wondered how they were coping, what they were thinking.

Finally, they reached her apartment. Inside, Sarah collapsed onto the couch, exhaustion overwhelming her. Tom sat beside her, wrapping his arms around her.

“It’s going to be okay,” he whispered.

Sarah closed her eyes, clinging to his words. She accepted that the battle had only just begun.

## Voir Dire

The courtroom buzzed with nervous energy. Sarah sat beside Dr. Reed and Ms. Blackwell, her attorney and associate. Across from them, Mr. Harrison, the prosecutor, and his team sat confidently. Two jurors were already seated.

Reed noticed Sarah checking the BPM on her Fitbit. Leaned close to Sarah and whispered “We’ve got this.”

Sarah nodded, her heart pounding. She scanned the potential jurors, their faces inscrutable. The weight of the moment bore down on her. Her future, the future of science education in Tennessee, hung in the balance.

“Number seventeen,” the clerk called. “Please proceed to the jury box and then state your name and occupation.”

A middle-aged man stood. “Sam Jones, plumber.” he said after sitting in the box.

Harrison smiled. “Mr. Jones, thanks for being here. Can you tell us what you know about the case?” Jones cleared his throat. “I’ve read about it in the papers. It’s about teaching evolution in schools, right?”

Harrison nodded. “That’s correct. And what are your thoughts on evolution being taught in schools?”

Jones was fidgeting with an imagined wrench. He’d always been a practical man, a plumber who fixed problems with his hands. Science? Sure, he believed in it. But faith? That was important too. He remembered his grandma telling him Bible stories, the comfort they brought. He didn’t want to see kids lose that. But then again... his own son loved dinosaurs, loved learning about the world. He didn’t want to hold him back either.

Finally he said, “Well, I believe in science, but I also think there’s room for different viewpoints.”

Harrison pressed further. “If evidence showed that teaching evolution improved student outcomes, would that influence your opinion on the matter?” Jones paused, considering the question. “I suppose it would. But

I'd want to see that evidence for myself. Science is about questioning and verifying, after all."

Harrison nodded, seemingly satisfied. "Thank you, Mr. Jones. No further questions."

Ms. Blackwell stood. "Mr. Jones, you mentioned different viewpoints. Do you believe all viewpoints should be given equal weight in a science classroom?"

Jones shifted uncomfortably. "Well, that's a tough one. I think it's important to consider different ideas, but in a science class, the focus should probably be on, well, science."

Blackwell smiled. "Thank you, Mr. Jones. No further questions."

Sarah watched the exchange intently, her mind racing. Was Jones a potential ally or a threat to their case? The complexity of jury selection was becoming increasingly clear. Judge Stone called for any challenges. Harrison leaned back, seemingly content. Ms. Blackwell, however, whispered urgently to Sarah and Dr. Reed.

"He's on the fence," she murmured. "Could swing either way. Risky."

Sarah bit her lip, weighing the options. She nodded decisively.

Ms. Blackwell stood. "Your Honor, the defense would like to exercise a peremptory challenge for Mr. Jones."

Judge Stone nodded. "Very well. Mr. Jones, you are excused. Thank you for your time."

As Jones left, Sarah caught Harrison's satisfied smirk. She realized the prosecution had been bluffing, hoping the defense would use a challenge. The chess game of jury selection continued.

After two more hours of questioning and deliberation, nine jurors had been selected. The tension in the courtroom was palpable largely due to the exhaustion beginning to set in on all participants.

"Number forty-two," the clerk called. "Please proceed to the jury box and state your name and occupation."

A tall, lean man with graying hair stood and made his way to the box. “Bob Cavanaugh, retired car salesman,” he stated clearly.

Harrison’s questioning revealed Cavanaugh’s lack of scientific interest. He seemed pleased with Cavanaugh’s responses. As Harrison sat down with a satisfied smile, Dr. Reed leaned forward, her brow furrowed with concern.

“Mr. Cavanaugh,” Reed began, her voice steady, “would it be safe to say that you are not one who appreciates science?”

Cavanaugh straightened in his seat. “Yes.”

“Do you own a cell phone.”

“Yes.”

“Have you ever pondered the level of materials science understanding that was necessary to create the touch-sensitive screen? Or, marveled that such a small device contains multiple computer chips?”

“Nope.”

“Well, do you enjoy an occasional beer?”

“Yep.”

“Are you aware that making beer...”, Reed paused here when Cavanaugh started shaking his head before she even finished the question. She pondered several moments, and then “Your honor, we suggest that a challenge for cause might be appropriate here.”

Harrison was on his feet like a shot, but the judge ignored the objection, “Yes, I think I would have to agree. Mr. Cavanaugh, you are excused.”

A collective chuckle rippled through the courtroom as Cavanaugh, clearly disgruntled, shuffled out. Even the judge cracked a rare smile. But the levity was fleeting. Sarah felt the air thicken once more as the next potential juror was called. Ms. Blackwell’s pen tapped a nervous rhythm against her notepad. Dr. Reed’s shoulders, usually so straight, sagged just a bit. Across the aisle, Harrison’s grin had vanished, replaced by a grim line. The unspoken truth hung heavy in the room: they were running out of chances. One wrong move now, and the entire case could tip.

Dr. Reed and Ms. Blackwell conferred in hushed tones before using their final peremptory challenge on the selection of the tenth juror, a retired history teacher whose views on science education seemed ambiguous at best. Harrison, not to be outdone, exercised his last peremptory challenge on the eleventh juror, another software specialist who had expressed a strong belief in the scientific method.

With both sides out of challenges, the selection of the twelfth and final juror took on added significance. The clerk called the next number, and a woman in her mid-thirties stood up.

“Amanda Pearson, stay-at-home mother of three,” she announced as she took her seat. She smoothed her skirt as she sat in the jury box.

As the questioning began, Sarah felt as though she could read Ms. Pearson’s thoughts. Stay-at-home mom, she’d said, but it felt like more. That her kids were her world, and their education... that was probably everything. She’d seen firsthand how a good teacher could spark curiosity, how facts could build a foundation for a child’s future. This case... it wasn’t just about evolution. It was about giving kids the tools to think, to question, to grow. She hoped she could be a voice for that on this jury.

As the questioning progressed, Mrs. Pearson spoke passionately about the importance of education and her involvement in her children’s schooling. Her responses certainly seemed to favor a well-rounded, fact-based curriculum.

Sarah glanced at Ms. Blackwell, who gave a slight nod of approval. It appeared they might have found an ally in this final juror. Harrison’s subtle frown suggested he too recognized the potential impact of Mrs. Pearson’s presence on the jury.

The fate of the trial now hung in the balance as both sides completed their final round of questioning.

## Opening Statements

The judge's gavel cracked against the sound block, silencing the low murmur that had filled the courtroom. "The court will come to order," he announced, his voice carrying authority that demanded attention. "Mr. Harrison, you may proceed with your opening statement."

### Opening for the Prosecution

Harrison rose slowly, buttoning his jacket as he approached the jury. Sunlight streamed through the tall windows, casting long shadows across the polished floor. His shoes clicked against the floor, each step measured and deliberate. He stopped, scanning the faces before him, his gaze lingering on each juror for a moment.

"Ladies and gentlemen of the jury," he began, his voice clear and steady. "This case is about the law. It's about order. It's about following the rules that we, as a society, have agreed upon."

Sarah felt her heart rate quicken. She glanced at her Fitbit: 110 BPM. Dr. Reed placed a reassuring hand on her arm.

Harrison continued, "The facts of this case are simple and undisputed. On September 14th, 2024, Sarah Chen, a teacher at Oakville High School, knowingly and willfully violated State Education Act, Section 23.1, which prohibits the teaching of evolution in public schools."

He paused, letting the words sink in. Sarah noticed Amanda Pearson, the last-selected juror, lean forward slightly.

"We will present three witnesses who will testify to Ms. Chen's actions. First, Principal Davis, who will confirm that Ms. Chen was aware of the law and chose to disregard it. Second, Officer Brent, who arrested Ms. Chen in her classroom. And finally, we will hear from Johnny Anderson, a student present during Ms. Chen's illegal lesson."

Sarah's jaw tightened at the mention of Johnny's name. She remembered his raised hand, his shaky voice. She felt a mix of concern and disappointment knowing he would testify against her.

Harrison's voice hardened. "This isn't about the merit of the law. It's not about personal beliefs or scientific debates. It's about a teacher who decided she was above the law. A teacher who chose to ignore her responsibility to follow the curriculum set by the state."

He turned, gesturing towards Sarah. "Ms. Chen may have her reasons, her justifications. But the law is clear. And no one, regardless of their intentions, is above the law."

As Harrison returned to his seat, Sarah caught Dr. Reed's eye. The attorney's face was impassive, but there was a glint of determination in her gaze. Sarah knew the real battle was about to begin.

## **Opening for the Defense**

Judge Stone nodded towards Dr. Reed. "Counsel for the defense, you may present your opening statement."

Dr. Reed rose, her movements fluid and confident. She approached the jury, her eyes meeting each member's gaze with unwavering intensity.

"Ladies and gentlemen," she began, her voice resonant and clear, "Mr. Harrison is correct about one thing: this case is indeed about the rules we, as a society, have agreed upon. But he's mistaken about which rules are at stake here." Her voice, though calm and measured, resonated with a power that seemed to fill the courtroom, silencing the subtle creaks and coughs that had punctuated Harrison's speech.

She paused, letting her words hang in the air. Sarah noticed several jurors leaning forward, including Amanda Pearson.

"The most fundamental rule we've agreed upon as a nation is the Constitution of the United States. It's the bedrock of our legal system, the supreme law of the land. And it's this very Constitution that the State of Tennessee has violated with its misguided attempt to censor scientific education."

Reed began to pace slowly, her words measured and deliberate. "The First Amendment protects our freedom of speech, our right to access information, our academic freedom. These aren't just lofty ideals - they're essential for the progress of our society, for the education of our children, for the very future of our nation." A few heads in the gallery nodded in agreement

as Reed spoke about the Constitution, their faces illuminated by the soft glow of the overhead lights.

She turned, gesturing towards Sarah. “Ms. Chen didn’t stand in that classroom to break the law. She stood there to uphold a far more important one - the constitutional right of her students to receive a comprehensive, fact-based education.”

A lump formed in Sarah’s throat, and she fought back the sting of tears threatening to spill. Her fingers dug into the worn fabric of her skirt, grounding her as she willed herself to remain composed.

Reed continued, her voice growing more impassioned. “Throughout this trial, we will demonstrate that the State Education Act, Section 23.1, is not just misguided - it’s unconstitutional. We’ll show how it impedes the teaching of established scientific theories, theories that form the foundation of modern biology, medicine, and countless other fields.”

She paused, sweeping her gaze across the jury. “We’ll bring forward expert witnesses - respected scientists and educators - who will testify to the critical importance of teaching evolution in our schools. They’ll explain how censoring this fundamental theory doesn’t just handicap our students - it threatens America’s position as a leader in scientific research and innovation.”

Reed’s voice softened, becoming almost intimate. “But most importantly, we’ll show you the real impact of this law. You’ll hear from students whose dreams of pursuing careers in biology, in medicine, in scientific research, are being crushed by this unconstitutional act of censorship.”

She straightened, her voice regaining its strength. “Ladies and gentlemen, this isn’t just about Sarah Chen. This is about every student in Tennessee. This is about the future of science education in our country. This is about standing up for the Constitution - that fundamental set of rules we’ve all agreed to live by.”

Reed returned to her seat, placing a reassuring hand on Sarah’s shoulder. Sarah exhaled slowly, her heart racing with a mix of fear and hope.



## **Recess**

The crack of the judge's gavel quieted the courtroom, "Thank you, counsel. We'll take a brief recess before beginning with the prosecution's witnesses."

As the jury filed out, a low murmur filled the room. Sarah exhaled slowly, her shoulders sagging with released tension. She turned to Dr. Reed, her voice barely above a whisper. "How do you think it went?"

Reed's eyes scanned the retreating jurors before meeting Sarah's gaze. "It's a strong start," she said, her tone measured. "But the real work begins with the witnesses. Are you ready?"

Sarah nodded, her jaw set with determination. Across the aisle, she caught sight of Harrison in hushed conversation with Principal Davis. The principal's face was grim, his posture rigid.

As bailiffs ushered out the remaining spectators, Sarah closed her eyes for a moment. The weight of what was to come pressed down on her. When she opened them again, her gaze fell on the empty witness stand. Soon, it would be filled with voices either condemning or supporting her actions. The thought sent a shiver down her spine.

Dr. Reed touched her arm gently. "Remember, Sarah, we're not just defending you. We're defending the right to teach science without censorship. Keep that in mind, no matter what you hear up there."

As the jurors began to disappear through the heavy oak door at the back of the courtroom, Sarah caught Amanda Pearson's eye. The juror's face was thoughtful, her brow furrowed in concentration. Sarah allowed herself a glimmer of hope. The lines had been drawn, and Dr. Reed had ensured that the Constitution was the battleground.

# Prosecution

## Harrison

"The prosecution calls Principal Edward Davis to the stand."

Davis rose. His steps were heavy. The oath was administered then he sat.

Harrison approached. "Please state your name and occupation for the record."

"Edward Davis. Principal of Oakville High School."

"How long have you held this position?"

"Fifteen years."

Harrison nodded. "Were you aware of the State Education Act, Section 23.1, prohibiting the teaching of evolution?"

"Yes."

"Did you inform your staff about this law?"

Davis's jaw tightened. "Yes. At a staff meeting before the school year."

"Was Sarah Chen present at this meeting?"

"She was."

Harrison paced. "Did Ms. Chen express any concerns about the law?"

Davis hesitated. "She did."

"What did you tell her?"

"I told her to stick to the approved curriculum."

Harrison turned to the jury. "And did she?"

Davis looked down. "No. She taught evolution anyway."

"Thank you." Harrison returned to his seat. "Your witness."

## Reed

Dr. Reed stood. Her eyes locked on Davis. "Principal Davis, in your fifteen years as an educator, have you seen the impact of science education on students?"

"Of course."

"In your professional opinion, is evolution a core concept in biology?"

Harrison jumped up. "Objection! Calls for speculation."

Judge Stone considered. "I'll allow it. The witness has extensive experience in education."

Reed nodded. "Principal Davis?"

Davis shifted. "Yes, it's considered a fundamental theory in biology."

"So, by following this law, are we not hindering our students' scientific education?"

Davis's knuckles whitened on the armrest. "That's not for me to decide."

Reed pressed on. "But you're an educator. Surely you have an opinion on what's best for your students?"

Davis's eyes darted to Harrison, then back to Reed. "My job is to follow the law."

"Even if it means providing an incomplete education?"

"Objection!" Harrison called. "Argumentative."

"Sustained," the judge ruled.

Reed paused, then shifted gears. "Principal Davis, did Ms. Chen's teaching of evolution cause any disruption in the school?"

"No, not directly."

"Can you provide a good example in which it caused a disruption IN-directly?"

"Not off the top of my head. No."

“Did you receive any complaints from parents about the quality of her teaching before this incident?”

“No.”

“Isn’t Ms. Chen considered an outstanding science teacher, in large part because she is well advanced toward a PhD in biology?”

Davis hesitated. “She is well-educated and well-regarded, yes.”

“Let’s take that a bit further. Isn’t it true that you have been quoted as saying that Oakville High is lucky to get the best biology teacher in the state?”

“Yes.”

Reed nodded. “No further questions.”

As Davis stepped down, Sarah caught his eye. For a moment, she saw a flicker of something - regret, perhaps. Then it was gone. Davis walked past, his shoulders slumped under the weight of his testimony.

“The prosecution calls Officer James Brent to the stand.”

Brent strode forward. Uniform crisp. Oath taken. He sat.

Harrison approached. “Officer Brent, please state your name and occupation.”

“James Brent. Police officer with Oakville PD.”

“Were you on duty on September 14th, 2024?”

“Yes, sir.”

“What brought you to Oakville High School that day?”

Brent’s voice was matter-of-fact. “We received an anonymous tip. Someone reported a teacher violating the State Education Act.”

“And what did you do?”

“I went to the school. Asked Principal Davis to guide me to Ms. Chen’s classroom.”

Harrison nodded. “Did you witness anything before entering?”

“Yes. I heard Ms. Chen use the term natural selection through the open door.”

“And when you entered?”

“The word ‘EVOLUTION’ was written on the board.”

Harrison turned to the jury. “So you directly observed the violation?”

“I did.”

“What happened next?”

“I placed Ms. Chen under arrest.”

“Did she resist?”

“No. She was cooperative.”

“Thank you, Officer. No further questions.”

Reed stood. Her eyes sharp. “Officer Brent, you mentioned an anonymous tip. Is this common in your work?”

Brent shifted. “Not for school-related issues, no.”

“Have you ever before arrested a teacher from their classroom?”

“No, ma’am. This was a first.”

“You said you heard Ms. Chen discussing natural selection. Are you familiar with this concept?”

Brent hesitated. “Not in detail. I did recall that it was related to evolution though.”

“Have you been trained with knowledge specific to the new law about evolution?”

“No ma’am.”

Reed nodded. “You saw ‘EVOLUTION’ on the board. Did you see a more complete context?”

“No, ma’am. Just the word.”

“Have you received any anonymous tips about teachers who are not teaching the Bible in their classrooms?”

“Not to my knowledge, ma’am.”

“Are teachers required to teach the Bible in every class period?”

“I don’t know.”

“Would you arrest a teacher who failed to work a Bible story into a lesson on fractions?”

Brent didn’t bother to answer, just sat there looking defeated.

“No further questions, your honor.”

As Brent stepped down, Sarah watched him go. His testimony was brief. But the image of him at her classroom door, listening, observing, lingered. Dr. Reed squeezed her arm, a silent reassurance.

“The prosecution calls John Anderson to the stand.”

Johnny walked to the witness box. His steps were uncertain. He glanced at Sarah, then quickly looked away. The oath was administered. He sat, hands fidgeting in his lap.

Harrison approached, his voice gentler than before. “John, can you state your name and grade for the record?”

“Johnny Anderson. 11th grade.”

“Were you in Ms. Chen’s biology class on September 13th and 14th, 2024?”

“Yes, sir.”

“Can you tell us what Ms. Chen taught on those days?”

Johnny swallowed hard. “She... she started teaching about evolution.”

“And you knew this was against the new law?”

“Yes. My parents had told me about it.”

Harrison nodded encouragingly. “What specifically did Ms. Chen say about evolution?”

Johnny's voice was low. "She said it was a scientific theory. That it explained how living things change over time."

"Did you raise any concerns about this topic being taught?"

Johnny nodded. "Yes, I asked about it. Because of what my parents said."

"And how did Ms. Chen respond?"

Johnny paused, recalling. "She said everyone has their own beliefs and views. That it was okay. She said we were there to learn science."

Harrison's brow furrowed slightly. "I see. Did she mention that teaching this was now prohibited?"

"No, sir, that's why I asked her about it."

"How did these things make you feel, Johnny?"

Johnny shifted in his seat. "Confused, I guess. And worried."

"Worried about what?"

"That we were learning something we shouldn't be."

Harrison's voice softened further. "Thank you, Johnny. No further questions."

Dr. Reed stood, her approach measured. "Johnny, you mentioned feeling confused. Was that because the lesson itself was confusing?"

"No, ma'am. Ms. Chen explained it clearly."

"So your confusion was about the situation, not the content?"

"Yes, ma'am."

Reed nodded. "You said Ms. Chen called evolution a scientific theory. Did she explain what that means?"

"She said it's an explanation based on lots of evidence. Not just a guess."

"I see. And did Ms. Chen provide a specific example in her lesson?"

Johnny's eyes lit up slightly. "She talked about peppered moths. How they changed color over just a few years to avoid being eaten by birds."

“Did you find this example interesting?”

“Yeah, it was cool. I didn’t know evolution could happen so fast.”

Reed smiled. “What else did Ms. Chen mention you’d be learning about?”

“She said we’d look at DNA evidence later. I was looking forward to that.”

Reed smiled. “I understand you’re interested in becoming a veterinarian. Is that right, Johnny?”

Johnny sat up a little straighter. “Yes, ma’am. That’s my dream.”

The look on Harrison’s face revealed that he should have interviewed Johnny Anderson a little more carefully.

Reed nodded encouragingly. “That’s right. So if you were to pursue veterinary medicine in college, do you think evolution might be a necessary part of your studies?”

“Yes, ma’am.”

Reed nodded. “Thank you, Johnny. No further questions.”

As Johnny stepped down, his eyes met Sarah’s. There was a moment of unspoken communication - sadness, understanding, and gratitude.

The courtroom was silent. The weight of Johnny’s testimony hung heavy in the air. Sarah’s heart pounded in her chest. She looked at Dr. Reed, who gave her an encouraging nod.

“The prosecution rests,” Harrison announced.

Judge Stone looked at the defense table. “The defense may now present its case.”



## Defense - Zoe Williams

The courtroom air hung thick with tension. Sarah's fingers drummed a silent rhythm on the smooth oak of the defense table. Sunlight slanted through the high windows, casting long shadows across the worn floorboards. A pencil rolled, its soft clatter echoing in the hushed room.

Dr. Reed straightened her papers, the rustle loud in the silence. Across the aisle, Harrison's chair creaked as he leaned back, his face a mask of confidence. The jurors shifted, their eyes darting between Sarah and the judge's bench.

Judge Stone's gavel rapped once, sharp and final. "The prosecution rests," he intoned, his voice filling the chamber. "The defense may now present its case."

Sarah's breath caught. Dr. Reed's hand found hers beneath the table, a quick, reassuring squeeze. The moment stretched, taut as a wire. Then Dr. Reed rose, her heels clicking on the hardwood as she stepped forward to face the jury.

Alex Blackwell leaned in, her hands busy arranging documents on the table. She slid a yellow legal pad towards Sarah, a reassuring smile playing at the corners of her mouth. "We've got this," she whispered, her voice barely audible. Sarah managed a nod, her throat too tight for words. Dr. Reed rose, shuffling her notes one last time. Her heels clicked a steady rhythm as she stepped forward to face the jury, her posture radiating determination.

### Reed

Dr. Reed said, "The defense calls Zoe Williams."

When Zoe was sworn and seated, Dr. Reed approached the witness stand. Zoe sat straight-backed, her hands folded in her lap.

"Please state your name and grade for the record."

"Zoe Williams. 11th grade at Oakville High."

Reed nodded. "Zoe, what are your academic interests?"

"Biology, mainly. I want to study marine biology in college."

“How long have you been in Ms. Chen’s class?”

“Since the start of the year. About three months.”

Reed paced slowly. “Can you describe Ms. Chen’s teaching style?”

Zoe’s eyes lit up. “She makes everything interesting. Even the hard stuff. She always has examples that make sense.”

“Can you give us an example?”

“Sure.” Zoe leaned forward. “When she taught about DNA, she compared it to a recipe book. Each gene is like a recipe for a protein. It just clicked.”

Reed smiled. “How does Ms. Chen handle questions in class?”

“She loves questions. Says they’re the heart of science. Even when someone disagrees, she listens. Makes us think.”

“Has Ms. Chen ever discussed her own beliefs about evolution?”

Zoe shook her head. “No. She just teaches the science. Says everyone’s free to believe what they want.”

Reed approached the witness stand. “Zoe, were you in class the day Ms. Chen was arrested?”

Zoe’s shoulders tensed. “Yes.”

“Can you tell us what happened?”

Zoe’s voice wavered. “We were just having class. Then the principal came in with a police officer. They made us all leave. When we came back, Ms. Chen was gone.”

“How did that make you feel?”

Zoe blinked hard. “Scared. Confused. Angry, too. We were just learning.”

Reed’s voice softened. “Why is learning about evolution important to you, Zoe?”

“It’s the foundation of biology. Without it, nothing else makes sense. How can I study marine biology if I don’t understand how species adapt and change?”

“Has not being able to learn about evolution affected your studies?”

Zoe nodded vigorously. “Yes. It’s like trying to read a book with pages missing. Nothing connects.”

Reed turned to the jury. “One last question, Zoe. How would you describe Ms. Chen as a teacher?”

Zoe sat up straighter. “She’s the best. She doesn’t just teach facts. She teaches us how to think like scientists. How to question, how to find evidence. She’s why I want to be a biologist.”

Reed nodded. “Thank you, Zoe. No further questions, Your Honor.”

As Reed returned to her seat, Sarah caught Zoe’s eye. A silent thank you passed between them. Harrison stood, adjusting his tie. Harrison’s cross-examination was about to begin.

## **Harrison**

Harrison rose, buttoning his jacket. He approached Zoe with a smile that didn’t reach his eyes.

“Ms. Williams, is it fair to say that you are quite fond of Ms. Chen?”

“Yes, sir.”

“Would you say you’re biased in her favor?”

Zoe hesitated. “I appreciate her abilities and her support, which is not the same thing as being biased.”

Harrison nodded. “You mentioned Ms. Chen teaches how to think like a scientist. Did she ever teach you about scientific laws?”

“Yes, of course.”

“And are laws important in science?”

“They are.”

Harrison’s voice sharpened. “So why isn’t following the law important here?”

Dr. Reed stood. The judge and Harrison looked her way. Judge Stone queried “Ms. Reed?”

Reed paused for a moment, then said, “Nothing your honor, we’d like to hear the answer too.”

Zoe was thoughtful for two seconds and then said, “Laws of nature and laws by humans are not the same thing. We discover laws of nature but can’t change them. Humans make up laws.”

Harrison paused, then shifted gears. “Ms. Williams, are you aware of other explanations for the diversity of life?”

Zoe’s brow furrowed. “Like creationism?”

“For instance, yes.”

“Yes.”

“Did Ms. Chen ever discuss these alternative views in class?”

“No. She stuck to the scientific theories.”

Harrison raised an eyebrow. “So she didn’t present all sides?”

Zoe’s jaw tightened. “It’s a science class, not a Sunday school. She taught science. That’s her job.”

“Moving on,” Harrison said smoothly. “You mentioned being scared when Ms. Chen was arrested. Were you aware of the new law before that day?”

“I’d heard about it.”

“Did Ms. Chen ever discuss this law with the class?”

Zoe hesitated. “It was raised as a question by Johnny Anderson, and she said that we were not there to question beliefs but to study science.”

Harrison nodded. “So she knew about the law but chose to ignore it?”

“Objection!” Dr. Reed called. “Calls for speculation.”

“Sustained,” Judge Stone said.

Harrison paced. “Ms. Williams, you said not learning about evolution is like reading a book with missing pages. But you’re still attending classes, correct?”

“Yes.”

“And you’re still learning biology?”

“Yes, but-”

Harrison cut her off. “So your education continues. You haven’t been denied schooling, have you?”

Zoe’s fingers gripped the stand. “Not denied, but it’s incomplete.”

“But you can’t know what you don’t know, can you?” Harrison’s tone was almost gentle. “How can you be sure you’re missing anything crucial?”

Zoe said, “I know studying biology in college requires you to understand evolution. And that biology forms the foundation of many fields such as medicine.”

“It would appear that Dr. Reed coached you well for today’s testimony.”

“That is not true! I have only spoken with Ms. Blackwell, and she only asked if I would testify today, with no coaching.”

Harrison said, “No further questions, Your Honor.”

As Harrison returned to his seat, Zoe’s gaze followed him, a mixture of anger and uncertainty on her face. Sarah sat rigid, her knuckles white as she gripped the edge of the table. Reed and Blackwell could not fight big grins.

# Defense - Dr. Saunders

## Reed

Dr. Reed stood. “The defense calls Dr. Emily Saunders.”

A woman with salt-and-pepper hair approached the stand. She was sworn in.

“Dr. Saunders, please state your credentials.”

“I’m a professor of evolutionary biology at the University of Chicago. I’ve published over 100 peer-reviewed papers and three books on evolution.”

Reed nodded. “What’s the biggest misconception about evolution you encounter?”

Dr. Saunders leaned forward. “That humans descended from apes. We didn’t. Humans and modern apes share a common ancestor.”

“Why is this distinction important?”

“It shows evolution isn’t a ladder. It’s a branching tree. Humans and modern apes share a common ancestor, but that doesn’t mean humans descended directly from the apes we see today. Instead, humans and apes evolved along different branches from this common ancestor, which is why both lineages still exist.”

Reed paced. “Why is teaching evolution crucial in biology classes?”

“Evolution is the foundation of modern biology. It explains the diversity of life, how species adapt. It’s key to understanding genetics, ecology, even medicine.”

“How so?”

“Take antibiotic resistance. That’s evolution in action. Understanding it is crucial for public health.”

“So, during the Covid19 pandemic, it was crucial to understand what it meant for the virus to be evolving into several variants?”

“Perfect example.”

Reed nodded. “What happens if we don’t teach evolution?”

“We cripple scientific understanding. It’s like teaching physics without gravity, or chemistry without the periodic table.”

“Does teaching evolution require students to believe in it?”

“No. Science isn’t about belief. It’s about evidence and explanation. Students need to understand evolution to grasp biology, regardless of their personal beliefs.”

Reed turned to the jury. “Thank you, Dr. Saunders. No further questions.”

## **Harrison**

Harrison stood, adjusting his tie. He approached the witness stand with measured steps.

“Dr. Saunders, you’ve had a long career in evolutionary biology, correct?”

“Yes, that’s right.”

“And in that time, has there ever been a challenge to the theory of evolution that you found credible?”

Dr. Saunders paused. “There have been refinements and expansions of evolutionary theory, but no credible challenges to its core principles.”

Harrison nodded. “So, you’re saying the science is settled?”

“The fundamental principles are well-established.”

“But isn’t questioning established ideas part of the scientific process?”

“Yes, but -”

Harrison cut her off. “So why not teach alternative theories alongside evolution?”

Dr. Saunders frowned. “Because they’re not scientific theories. They don’t meet the criteria for scientific inquiry. Science adjusts theories based on new evidence.”

Harrison paced. “You mentioned antibiotic resistance and COVID-19. Aren’t these examples of microevolution, not the kind of large-scale changes evolution proposes?”

“They’re all part of the same process. The timescales are different, but the fundamental mechanisms are the same.”

“But we’ve never observed one species changing into another, have we?”

“We have extensive fossil evidence -”

Harrison interrupted again. “But no direct observation, correct?”

Dr. Saunders took a breath. “We didn’t observe the formation of the Smoky Mountains either, but we understand the process.”

Harrison turned to the jury. “So, we’re asked to take a lot on faith, aren’t we?”

“Objection!” Reed called. “Argumentative.”

“Sustained,” said the judge.

Harrison held up his hands. “No further questions, Your Honor.”

Dr. Saunders could not suppress a smile as her eyes followed Harrison back to his seat.



# Defense - Congressman

## Reed Direct Examination

Dr. Reed stood. "The defense calls Congressman Ryan Thomas."

Dr. Reed approached the witness stand, her posture confident. "Congressman Thomas, thank you for joining us today. I'd like to start with some basic questions about science. Can you tell me about the three states of what we commonly call water?"

Congressman Thomas shifted uncomfortably. "Well, I'm not a scientist, and don't know what you are referring to."

Harrison stood abruptly. "Objection, Your Honor. Relevance?"

Dr. Reed turned to the judge. "Your Honor, the Congressman has written a bill rejecting fundamental science. I'm simply establishing his level of scientific understanding."

Judge Stone considered for a moment. "I'll allow it. Proceed, Dr. Reed."

Reed nodded. "Congressman perhaps I caught you off-guard. Let me help by stating that two of the states are gas and solid, can you tell me the third?"

"No."

"The third common state of water is 'liquid.'" "Let's move on to evolution. Can you explain the concept of natural selection?"

Thomas hesitated. "It's about survival of the fittest, right? The strong animals win."

"That's a common misconception," Reed replied. "Natural selection is about the survival and reproduction of individuals with traits best suited to their environment. It's not always about strength. Now, can you explain genetic drift?"

The Congressman's brow furrowed. "I'm not familiar with that term."

Reed pressed on. "It's a fundamental concept in evolutionary biology. What about speciation? Can you describe that process?"

Thomas's discomfort was palpable. "I... I'm not sure. As I said, I'm not a scientist."

"Yet you've written a bill that significantly impacts science education," Reed noted. "One last question on this topic: can you explain the difference between a scientific theory and a hypothesis?"

Thomas fumbled for words. "A theory is... just a guess, right? And a hypothesis is... a more educated guess?"

Reed shook her head slightly. "Actually, in science, a theory is a well-substantiated explanation of a natural phenomenon, supported by a vast body of evidence. A hypothesis is a proposed explanation that can be tested."

She continued, "Congressman, since you remind us that you are not a scientist, would we be right to assume that you consulted experts during the writing of your bill? Either science scholars or biblical scholars?"

"No."

"Now, Congressman, given your responses, perhaps we should examine your educational background, particularly in sciences?"

Thomas straightened in his seat. "I have a bachelor's degree in Business Administration. I took a general science course as part of my core curriculum."

Reed nodded, letting the implications of his limited scientific education hang in the air. "Thank you, Congressman. Now, let's move on to the process of creating this bill..." "Did your office have any research studies on the impact to Tennessee if its best STEM students graduate with no knowledge of evolution?"

"No."

"Why not Congressman?"

"It was not necessary."

"How so? Do you mean it was not necessary in order to get the bill passed by the legislature? Or do you mean, it was not necessary because you already understood the impact?"

Congressman Thomas did not reply, but just stared at Reed.

Dr. Reed continued her questioning, shifting focus to the legislative process behind the bill.

“Congressman Thomas, did you seek bipartisan sponsorship for this bill?”

Thomas hesitated before answering, “No, I did not.”

“Can you explain why not, given the significant impact this bill has on education?”

“I... I felt our party’s values aligned with the bill’s intentions.”

Reed nodded. “I see. And how did members of the opposing party react to the bill?”

Thomas shifted uncomfortably. “They were not in favor of it.”

“Not in favor? Could you be more specific? Was there unanimous opposition from the other party?”

Thomas cleared his throat. “Yes, I believe all members of the opposing party voted against it.”

Reed paced slowly. “Let’s discuss the debate process. How long did the debate on this bill last in the legislature?”

Thomas’s eyes darted around the room, but did not reply.

“Was it hours? Days?” Reed pressed.

“There was no debate on the floor.”

Reed raised an eyebrow. “An entire party was opposed to the bill and yet asked no questions? And raised no objections?”

“That is correct.”

Reed’s voice sharpened. “There were no questions or concerns about a bill that fundamentally changes science education across the entire state of Tennessee?”

“Objection!” Harrison called out. “Badgering the witness.”

“Sustained,” Judge Stone ruled. “Please rephrase, Dr. Reed.”

Reed nodded. "Congressman, was there no debate because your party holds a supermajority in the legislature?"

"Yes."

"And did the supermajority affect the debate process for this bill?"

Thomas hesitated. "It... may have expedited the process."

"Expedited?" Reed echoed. "Congressman, isn't it true that your party's supermajority totally stifled all debate on this topic critical to education?"

Thomas's face reddened. "The bill passed through the proper channels."

Dr. Reed approached Congressman Thomas again, her demeanor calm but determined.

"Congressman Thomas, I'd like to discuss your knowledge of prior legislation similar to your bill. Are you familiar with the Butler Act of 1925 in Tennessee?"

Thomas hesitated. "I've heard of it, yes."

"Can you tell us what it entailed?"

"It was... something about evolution, I believe."

Reed nodded. "Indeed. It prohibited the teaching of evolution in Tennessee schools. Are you aware that this law was repealed in 1967?"

Thomas looked surprised. "I... I wasn't aware of that, no."

"I see. What about the case of *Edwards v. Aguillard* in 1987? Does that ring any bells?"

Thomas shook his head. "No."

"It was a United States Supreme Court case that struck down a similar law in Louisiana. Did you come across this case in your research while drafting your bill?"

"No." Thomas admitted.

Reed pressed on. "Did you consult any legal scholars or experts while drafting this legislation?"

Thomas shifted uncomfortably. “No, I didn’t feel it was necessary.”

“I see. Congressman Thomas, let’s examine the paragraph in your bill that addresses the prohibition of teaching evolution. Would you read it aloud please?”

Thomas cleared his throat and began reading from a copy of the bill provided to him, the one he had drafted:

“It is unlawful for a teacher in any Tennessee school to teach any theory that denies the story of the Divine Creation of man as taught in the Bible. Evolution is prohibited because it declares that man has descended from a lower order of animals.”

As he finished, Reed approached with another document.

“Thank you. Now, I’d like you to look at this document. Notice any similarities?”

Thomas was trying to not display emotion as he read the document:

“It shall be unlawful for any teacher in any of the public schools of the State to teach any theory that denies the story of the Divine Creation of man as taught in the Bible, and to teach instead that man has descended from a lower order of animals.”

Reed continued, “Congressman, that is an excerpt from the Butler Act of 1925. Can you explain this similarity?”

Thomas stammered, “I... I didn’t realize. It must be a coincidence.”

“A coincidence?” Reed echoed. “Congressman, given the striking similarities and your admitted lack of research into prior cases, would you agree that this bill appears to be rehashing legislation that has already been deemed unconstitutional?”

Thomas looked flustered. “I... I can’t speak to that. I’m not a legal expert.”

“Not a legal expert? Didn’t you write a bill that became law?”

Reed paused and then said, “No further questions on this topic, Your Honor. We’ll move on to the Bible portion of the bill next.”

Dr. Reed turned back to Congressman Thomas, her expression serious.

“Congressman, let’s discuss the portion of your bill that requires the use of the Bible in all public school classes. Do you consider yourself a biblical scholar?”

Thomas shifted uncomfortably. “Well, I’ve studied the Bible extensively as part of my faith, but I wouldn’t claim to be a scholar per se.”

“I see. Yet you’ve written legislation mandating its use in schools. Now, I’d like to remind you and the court of the bill which you read aloud earlier.”

“Now, Congressman, let’s briefly analyze a relevant line from the First Amendment’s Establishment Clause.” Please.

Thomas cleared his throat and read from the provided document: “Congress shall make no law respecting an establishment of religion...”

Reed nodded. “Thank you. Congressman Thomas, how do you reconcile your bill, which mandates the use of a specific religious text in public schools, with this constitutional provision?”

Thomas fumbled for words. “Well, the Bible is a foundational text in our culture and history...”

Reed interrupted, “But it’s also a religious text. How does mandating its use in schools not constitute establishing religion?”

Thomas looked flustered. “We’re not establishing a state religion, we’re just acknowledging our cultural heritage.”

Reed pressed on. “Let’s explore that. The U.S. government recognizes over 200 religious groups. Why does your bill specifically mandate the use of the Bible and not, say, the Quran, the Bhagavad Gita, or other religious texts?”

Thomas stammered, “Well, the Bible is the predominant text in our state...”

“But isn’t that precisely what the Establishment Clause is designed to prevent - the government favoring one religion over others?” Reed asked.

Thomas struggled to respond.

Reed continued, "Of those 200-plus religions recognized by the U.S. government, can you tell me which ones have their sacred texts mandated for use in Tennessee schools under your bill?"

Thomas looked defeated. "Just... just the Bible."

Reed nodded slowly. "Just the Bible."

The courtroom fell silent as the implications of Thomas's answers hung in the air.

"Just one more thing, Congressman Thomas," Reed said, her tone deceptively casual. "Would you please look toward the back of the courtroom?"

As Thomas turned, Reed continued, "My colleague is escorting a gentleman in just now." She paused, allowing the courtroom's attention to focus on the newcomer. "Congressman, do you recognize that gentleman?"

Thomas's face, already flushed from the previous questioning, turned an even deeper shade of red. He swallowed hard before answering, his voice barely above a whisper, "Yes."

Reed's voice sharpened. "Please tell the court who he is."

Thomas hesitated, then replied, his defeat evident in his tone, "Dr. Smith from Vanderbilt's religion department."

Reed nodded slowly, letting the silence stretch for a moment before continuing. "Congressman Thomas, do you recall earlier in your testimony when I asked if you had consulted any scientists or other scholars while preparing your bill?"

Thomas's shoulders slumped. "Yes," he admitted, unable to meet Reed's gaze.

Reed's voice was quiet but clear, carrying to every corner of the hushed courtroom. "And what was your answer then?"

Thomas remained silent, the implication of his earlier lie hanging heavily in the air. Reed turned to the judge. "No more questions, Your Honor."

As Reed returned to her seat, the courtroom erupted in murmurs, the impact of this final revelation palpable among the spectators, jury, and legal teams alike.



## **Defense - Congressman**

### **Harrison Cross Examination**

Harrison stood, buttoning his jacket. "Congressman Thomas, in your role as a legislator, are you expected to be an expert in every field you legislate on?"

Thomas, looking slightly relieved at the friendly question, replied, "No, of course not."

Harrison nodded. "For instance, if you were to pass legislation prohibiting pilots from flying while intoxicated, would you need to know how to pilot a plane yourself?"

Thomas straightened up. "No, I wouldn't. That's just common sense legislation for public safety."

Harrison smiled. "Indeed. No further questions, Your Honor."

### **Reed Redirect**

As Harrison sat down, Dr. Reed stood up. "Redirect, Your Honor?"

The judge nodded. "Proceed."

Reed approached Thomas. "Congressman, following up on Mr. Harrison's analogy, would you pass legislation dictating when or how pilots are allowed to use specific flight controls, such as the rudder?"

Thomas hesitated. "Well, no, I suppose not."

Reed pressed on. "And would that be because it's a technical aspect of flying that you don't understand?"

Reed nodded. "Indeed. And in drafting such legislation about use of flight controls, would you feel obliged to consult with any pilots or aviation experts?"

Thomas shifted uncomfortably. "Yes, I would."

Reed's voice sharpened. "Yet you drafted legislation fundamentally changing how science is taught without consulting scientists. How do you reconcile these approaches?"

Thomas fumbled for words. “I... I thought I understood the issues well enough.”

Reed nodded slowly. “No further questions, Your Honor.”

Judge Stone looking at the prosecutor, “Re-cross counselor?”

Harrison, “None, Your Honor.”

## Reaction

The afternoon sun cast long shadows across the courthouse steps as reporters huddled around their phones, frantically typing out headlines:

"DEFENSE DEALS BLOW TO PROSECUTION IN TEACHER TRIAL"

"CONGRESSMAN THOMAS STUMBLES UNDER DIRECT EXAMINATION"

"EVOLUTION BILL AUTHOR STRUGGLES TO EXPLAIN BASIC SCIENCE"

Across town, in a dimly lit conference room, the school board members sat in tense silence. Johnson, the board president, paced back and forth, his face etched with worry.

"This is a disaster," he muttered. "The congressman looked like a fool up there."

Another board member chimed in, "What if we lose this case? The implications for our schools..."

Johnson cut him off. "Let's not get ahead of ourselves. But we need to start considering our options."

Meanwhile, in a cozy Italian restaurant, Sarah and Tom clinked their wine glasses together, their laughter mingling with the soft music.

"Did you see Thomas's face when Reed brought up the Butler Act?" Sarah giggled.

Tom grinned. "I thought he was going to melt into his chair. Reed was brilliant."

Further downtown, in a more upscale establishment, Reed and Blackwell sat hunched over their appetizers, speaking in low voices.

"We've got momentum," Blackwell said. "But we can't get complacent."

Reed nodded, pushing her plate aside. "Agreed. Let's head back to the office. We need to nail these closing arguments."

As they stood to leave, Reed caught a glimpse of a TV in the bar. The congressman's flustered face filled the screen, a silent testament to the day's events.

# Closing Arguments

## Harrison

Judge Stone banged the gavel for order and then, “Mr. Harrison make your closing arguments please.”

Harrison stood before the jury, his posture confident and his voice clear. He began his closing argument:

“Ladies and gentlemen of the jury, over the course of this trial, we’ve heard a great deal about science, education, and the law. But at its core, this case is about one simple fact: Ms. Chen knowingly and willfully broke the law.

“The law in question, passed by our duly elected representatives, requires the use of the Bible in classrooms and prohibits the teaching of evolution. Whether we agree with this law or not is irrelevant. As citizens, we are bound to follow the laws of our state.

“Ms. Chen was aware of this law. She was informed of it by her superiors. Yet, she chose to disregard it. She continued to teach evolution, directly contradicting the statute. This wasn’t a mistake or a misunderstanding. It was a deliberate act of defiance.

“The defense has tried to muddy the waters with arguments about the merits of the law itself. They’ve brought in expert witnesses to testify about the importance of teaching evolution. But that’s not what this trial is about. We’re not here to debate the law. We’re here to determine whether Ms. Chen broke it.

“And the evidence is clear. Multiple witnesses, including the school principal and a student, have testified that Ms. Chen taught evolution after the law was enacted. Officer Brent confirmed that he arrested Ms. Chen in her classroom while she was in the act of teaching this prohibited material.

“The defense may argue that Ms. Chen was acting out of a sense of moral obligation or professional duty. But we cannot allow individuals to pick and choose which laws they will follow based on their personal beliefs. That way lies chaos and the breakdown of our legal system.

“Remember, your duty as jurors is not to judge the law, but to apply it. The question before you is simple: Did Sarah Chen knowingly teach evolution in violation of state law? The evidence overwhelmingly shows that she did.

“I urge you to uphold the law and find the defendant guilty. Thank you.” Harrison returned to his seat, leaving the jury to ponder his words.

## **Reed**

Dr. Reed stood and approached the jury, her demeanor calm but resolute. She began her closing argument:

“Ladies and gentlemen of the jury, we’ve heard a lot over the course of this trial. But what we’re really discussing today goes far beyond one teacher in one classroom. This case is about our fundamental rights as American citizens, and the very nature of our legal system.

“Mr. Harrison would have you believe that this case is simply about whether Ms. Chen broke the law. But that view ignores a crucial aspect of our justice system: the concept of a ‘test case.’ This is a vital part of American jurisprudence. It’s how we, as citizens, get to have a say in the laws that govern us beyond just electing legislators. It’s how we challenge unjust or unconstitutional laws.

“The law Ms. Chen is accused of violating is eerily similar to the Butler Act of 1925, which was repealed in 1967. It’s also strikingly similar to a Louisiana law struck down by the Supreme Court in 1987. Both of these laws were found to violate the Establishment Clause of the First Amendment. This new law is no different.

“We’ve heard testimony about the importance of teaching evolution in science classes. Principal Davis himself testified that Ms. Chen is the best biology teacher in the state. Students Zoe Thompson and Johnny Anderson spoke eloquently about the quality of Ms. Chen’s teaching and how it prepared them for college-level science courses.

“But this case isn’t just about the quality of Ms. Chen’s teaching. It’s about our constitutional rights. The First Amendment states that ‘Congress shall make no law respecting an establishment of religion.’ This law, mandating

the use of the Bible in classrooms and prohibiting the teaching of established scientific theories, clearly violates this principle.

“We’ve also heard testimony about the process by which this law was passed. Congressman Thomas admitted that there was no debate, no consultation with experts, and no consideration of its impact on students or the state’s educational standing. Is this how we want our laws to be made?

“Mr. Harrison argues that we must follow the law regardless of whether we agree with it. But our system of government provides checks and balances for a reason. When a law violates our constitutional rights, it is not just our right but our duty to challenge it.

“Ms. Chen didn’t act out of defiance, but out of a deep commitment to her students and to the principles of science education. She acted to protect the constitutional rights of herself, her students, and all citizens of Tennessee.

“In finding Ms. Chen not guilty, you won’t just be deciding the fate of one teacher. You’ll be standing up for the Constitution, for the separation of church and state, for quality education, and for the right of citizens to challenge unjust laws.

“I urge you to consider the broader implications of this case. Remember the testimony you’ve heard about the importance of evolution in science education. Remember the constitutional principles at stake. And remember that sometimes, standing up for what’s right means challenging a law that’s wrong.

“Thank you.”

## **Judge Stone’s Charge**

As Dr. Reed returned to her seat, Judge Stone addressed the courtroom:

“Ladies and gentlemen of the jury, you have heard the evidence presented by both sides and the closing arguments of the attorneys. Now it is your duty to decide the facts of this case and to apply the law as I give it to you.

“You must consider all the evidence in light of reason, common sense, and experience. You are the sole judges of the credibility of witnesses and the weight to be given to their testimony.

“The defendant, Sarah Chen, is charged with violating the state law prohibiting the teaching of evolution and mandating the use of the Bible in classrooms. The prosecution must prove beyond a reasonable doubt that Ms. Chen knowingly violated this law.

“However, you must also consider the defense’s argument that this law is unconstitutional. If you find that the law violates the Establishment Clause of the First Amendment, you may acquit the defendant on these grounds.

“Remember, your verdict must be unanimous. You are not to be swayed by sympathy, prejudice, or public opinion. Your decision must be based solely on the evidence presented in this courtroom and the law as I have explained it to you.

“You will now retire to the jury room to begin your deliberations. When you have reached a unanimous verdict, inform the bailiff, and we will reconvene to hear your decision.”

The judge paused, looking over the twelve men and women who held Sarah Chen’s fate in their hands.

“The fate of the defendant and the implications of this case now rest in your hands. You may retire to deliberate.”

With a nod from the judge, the bailiff stood. “All rise,” he called out as the jury filed out of the courtroom and into the deliberation room.

As the door closed behind them, a palpable tension settled over the courtroom. Sarah Chen sat at the defense table, her hands clasped tightly in her lap, while Dr. Reed placed a reassuring hand on her shoulder. Across the aisle, Harrison shuffled his papers, his face unreadable.

The waiting had begun.

# The Jury Room

## Day 1

The door closed behind them. Twelve jurors. One oak table. Amanda's notepad lay before her, heavy with scribbled words.

"We need a foreman," the software engineer said. He looked around the room. "Not me."

Sam cleared his throat. Balding. Fifties. "I'll do it."

Nods all around.

"Let's vote," Sam said. "Hands up for guilty."

Three hands rose.

"Not guilty."

Nine hands.

Amanda's fingers tightened on her pen. The room felt small. Hot.

"How do we start?" Sam asked.

David leaned forward. His tie was too tight. "The law. It's clear. She taught evolution. That's illegal now."

"But is the law legal?" Ruth's voice was soft. She twisted her wedding ring. "The Constitution..."

Martha cut in. Her voice sharp as a knife. "We're not here to judge the law. We decide if she broke it."

Amanda took a breath. "The judge said we could. His words: 'If you find that the law violates the Establishment Clause of the First Amendment, you may acquit the defendant on these grounds.'"

Michael nodded. Young. A teacher. "Dr. Reed talked about that. The Establishment Clause."

Silence fell. Heavy. Thick.

David's chair scraped back. He stood. "She still broke the law. That's a fact."



“A fact?” Bob laughed. Short. Harsh. “My kid wants to be a doctor. How’s that happen if we don’t teach science?”

More silence.

“Think about why she did it,” Amanda said. Her voice steady. “For her students. Principal Davis said she’s the best.”

Nods around the table. A start.

Martha’s hands gripped the table edge. White knuckles. “The law is the law.”

“Laws can be wrong,” Michael said. He ran a hand through his hair. “I teach fifth grade. This law... it scares me.”

The room was a pressure cooker. Opinions simmered. Boiled.

Sam raised his hands. “Let’s take this slow. One point at a time.”

They nodded. The deliberation had only just begun.

Sam cleared his throat. “Let’s look at the law itself.”

“It’s simple,” David said. “No teaching evolution. Use the Bible in class.”

Ruth shook her head. “But it’s more than that. It’s about separation of church and state.”

“Exactly,” Michael said. He leaned forward. “The First Amendment is clear. ‘Congress shall make no law respecting an establishment of religion.’”

Martha scoffed. “We’re not Congress.”

“The Fourteenth Amendment applies it to states,” Michael countered.

Amanda nodded. “Dr. Reed mentioned a similar law in Louisiana. The Supreme Court struck it down.”

“That was then. This is now,” David said.

Bob stood up. Paced. “My daughter’s in Ms. Chen’s class. She came home excited about science for the first time.”

“My grandson goes to church school,” Martha said. “He learns just fine.”

“But it’s not the same,” Amanda said. She flipped through her notes. “Remember Dr. Saunders’ testimony? Evolution is the foundation of modern biology.”

Sam raised a hand. “Let’s review the evidence. What stood out to you?”

“Principal Davis,” Ruth said. “He called Ms. Chen the best biology teacher in the state.”

“Officer Brent caught her red-handed,” David countered.

Michael shook his head. “But remember what her students said? Zoe and Johnny? They’re excelling in college science courses because of her.”

“The law’s still the law,” Martha insisted.

Amanda leaned forward. “But is it constitutional? That’s what we have to decide.”

“The Establishment Clause isn’t just about direct promotion of religion,” Michael said. “It’s about government neutrality. This law clearly favors one religious view.”

“And it restricts academic freedom,” Bob added.

“Let’s vote again,” Sam suggested. “Guilty?”

Three hands. David, Martha, and a quiet man in the corner.

“Not guilty?”

Nine hands. Amanda felt a surge of hope.

“Still the same,” David muttered.

The quiet man lowered his hand slowly. “I... I’m not sure anymore.”

Sam nodded. “Let’s take a break. Fifteen minutes. We’ll continue after.”

As they stood, Amanda caught Bob’s eye. A small nod. It felt like progress.

The jurors filed back into the room. Coffee cups steamed. Chairs scraped against the floor.

Sam cleared his throat. “Alright, let’s resume.”

The quiet man raised his hand. His voice was soft but steady. "I'd like to say something."

The room fell silent. All eyes turned to him.

"During the break, I thought it over. I... I want to change my vote. To not guilty."

Martha's eyes widened. David's jaw clenched.

"What made you change your mind?" Amanda asked.

He met her gaze. "The Constitution. The students' testimony. It's not just about one law. It's about the future of education."

Sam nodded. "Thank you for sharing. Let's do a quick vote to confirm where we stand."

"All in favor of not guilty?"

Ten hands rose. Amanda's heart raced.

"Guilty?"

Two hands. David and Martha. Alone now.

Sam's pen scratched against his notepad. "Ten not guilty. Two guilty."

The air felt lighter. But the job wasn't done. Not yet.

The clock ticked past 7 PM. Empty coffee cups littered the table. Jurors shifted in their seats, fatigue evident on their faces.

"We've been at this for hours," Bob said, rubbing his eyes.

David leaned back, arms crossed. "And we're still not unanimous."

"Maybe we should call it a night," Ruth suggested. "Fresh eyes in the morning?"

Sam looked around the room. Nods of agreement met his gaze.

"I think that's wise," he said. "We're all tired. Sleep might bring new perspectives."

Martha stood, stretching. "What if we don't reach a decision tomorrow?"

“We have to,” Michael said. “It’s our duty.”

Amanda gathered her notes. Her hand cramped from writing. “We’re close. We just need to address the remaining concerns.”

Sam raised his voice slightly. “Alright, let’s adjourn for the night. We’ll reconvene at 9 AM sharp. Remember, don’t discuss the case with anyone.”

The jurors filed out, exhaustion in their steps. As they left, Amanda caught a glimpse of David and Martha, the two holdouts, exchanging worried glances.

In the hallway, a bailiff waited to escort them to their hotel. The weight of their unfinished task hung in the air.

“See you all in the morning,” Sam said as they parted ways.

Amanda lay in bed that night, her mind racing. Ten to two. So close, yet still so far. Tomorrow would be crucial.

## **Day 2**

The morning light filtered through the blinds. Coffee cups steamed. The jurors settled in for another day of deliberation.

Bob cleared his throat. “I’ve been thinking. This law... it’s not just about one class or one teacher.”

David raised an eyebrow. “What do you mean?”

“Think about college admissions,” Bob said. “My nephew applied to med school last year. They look at the high school curriculum.”

Amanda nodded. “And it’s not just medicine. Marine biology, genetics, any science field really.”

David’s brow furrowed. He leaned forward slightly.

Michael jumped in. “I had a student last year. Brilliant kid. Wanted to be a paleontologist. How’s she supposed to do that without learning about evolution?”

“But surely other subjects...” David started.

“It’s foundational,” Ruth interrupted. “Dr. Saunders testified how evolution underpins all of modern biology.”

David’s eyes widened. He sat back, running a hand through his hair.

“David?” Sam asked. “You alright?”

David nodded slowly. “I... I was just thinking about my granddaughter. She’s in eighth grade. Loves science.”

The room fell silent.

“She wants to be a veterinarian,” David continued, his voice quiet. “I never considered... if she can’t learn proper biology...”

Bob leaned in. “Yeah, good luck getting into a vet school with a diploma from a place with a joke rep. And it’s not just about school and jobs. Think about our state’s reputation. Will top researchers want to work at our universities? Will companies want to build labs here?”

David’s face paled. “I work in economic development. If we can’t attract high-tech companies...”

He trailed off, lost in thought.

Amanda watched David carefully. She could almost see the gears turning in his mind, the implications sinking in.

After a long moment, David looked up. His eyes met Amanda’s, then swept across the room. “I think,” he said slowly, “I may have been looking at this all wrong.”

The room fell silent as David’s words hung in the air. Sam cleared his throat.

“David, are you saying you want to change your vote?”

David took a deep breath. “I... I think I need to.”

Martha gasped. “David, you can’t be serious.”

“I am,” David said, his voice firmer now. “I was so focused on the letter of the law, I didn’t consider the consequences.”

Sam nodded. “Alright, let’s take another vote. All in favor of not guilty?”

Eleven hands rose into the air. David's hand trembled slightly as he raised it.  
"Guilty?"

One hand. Martha's. Her jaw was set, eyes blazing.

Sam wrote down the numbers. "That's eleven not guilty, one guilty."

Amanda felt a surge of hope. They were so close now.

"Martha," Michael said gently, "you're the only one left. Can you tell us why you're still voting guilty?"

Martha's lips thinned. "Because it's not our job to decide if a law is right or wrong. Ms. Chen broke the law. End of story."

"But the judge specifically said we could consider if the law is constitutional," Ruth reminded her.

"It doesn't matter," Martha insisted. "The Bible should be in schools. Evolution is just a theory."

Bob sighed. "We're not deciding on the merits of evolution or the Bible. We're deciding if this specific law violates the Constitution."

Martha crossed her arms. "Well, I say it doesn't. And I won't change my vote."

The room tensed. They were so close to a unanimous verdict, yet still so far.

Sam looked at the clock. "Let's take a short break. Clear our heads. We'll come back and see if we can find a way forward."

As they filed out, Amanda caught David's eye. He gave her a small nod. One down, one to go. But Martha would be the toughest nut to crack.

Michael suspected that Martha's issue was more about teaching the Bible than about evolution. "Martha, have you considered that this law might actually harm religious freedom?"

Martha frowned. "How could teaching the Bible harm religious freedom?"

Amanda spoke up. "The law doesn't specify which interpretation of the Bible to teach. What if a teacher's interpretation differed from yours?"

Martha's eyes widened slightly. She hadn't considered this.

"Think about it," David added. "There are so many different denominations, each with their own interpretations. Catholic, Baptist, Methodist, Lutheran..."

Ruth nodded. "And what about non-Christian teachers? They'd be required to teach the Bible too."

Bob added, "Imagine a teacher who doesn't share your beliefs teaching Bible stories to your grandchildren. They could easily distort the stories so that you would never recognize them."

Michael said gently, "They might teach it in a way that makes students question or even mock religious beliefs."

Martha's face paled. "They wouldn't..."

Several of the others chuckled at that. Martha realized that it could indeed happen.

"And remember," Ruth added, "this law would apply to all public schools. You can't control who teaches or how they teach in every classroom across the state."

Martha sat back, her certainty visibly shaken. "I... I never thought it could backfire like that."

"Obviously neither did the congressman", said Sam.

"That's why separation of church and state is so important," Michael said. "It protects everyone's religious freedom, including yours."

Martha nodded slowly, a new understanding dawning in her eyes.

Sam glanced at the clock. "I think we could all use a few minutes to reflect. Let's take a fifteen-minute break."

The jurors filed out, the tension palpable. Martha remained seated, her brow furrowed in deep thought.

Amanda hesitated at the door, looking back. Martha met her gaze, then quickly looked away.

In the hallway, the other jurors spoke in hushed tones. Bob paced. Ruth chewed her lip. David leaned against the wall, eyes closed.

The minutes ticked by slowly.

## **Unanimous**

When they returned, Martha sat straight-backed in her chair. Her hands were clasped tightly on the table.

Sam cleared his throat. "Before we continue our discussion, does anyone have anything they'd like to say?"

Martha took a deep breath. "I do."

The room fell silent. All eyes turned to her.

"I've been... thinking," Martha began, her voice quiet but steady. "About everything we've discussed. About faith, and freedom, and what this law really means."

She paused, looking around the room. "I've always believed that my faith was about love, and understanding, and doing what's right. And I realized... maybe fighting this law is the right thing to do. For everyone's freedom. Including my own."

Amanda felt her heart race. Could it be?

Martha straightened her shoulders. "I'd like to change my vote. To not guilty."

A collective exhale swept through the room. Bob's face broke into a wide grin. Ruth wiped a tear from her eye.

Sam nodded solemnly. "Thank you, Martha. Let's make it official. All in favor of a not guilty verdict?"

Twelve hands rose into the air. Unanimous.

Sam smiled. "Then we have reached our verdict. Ms. Chen is found not guilty."

As they prepared to inform the bailiff, Amanda caught Martha's eye. The older woman gave her a small, resolute nod.



They had done it. They had stood up for science, for education, for the Constitution. And in doing so, they had protected the freedoms Martha held so dear.

# **Jury Returns**

## **The Verdict**

Judge Stone rapped his gavel. The courtroom fell silent.

“I understand the jury has reached a verdict,” he said.

Sam stood. “We have, Your Honor.”

The bailiff took the folded paper from Sam, handed it to the judge. The judge unfolded it, read it, then passed it back.

“Mr. Foreman, please read the verdict,” the judge said.

Sam cleared his throat. “We, the jury, find the defendant, Sarah Chen, not guilty.”

Sarah’s eyes met Amanda’s across the courtroom. A flicker of understanding passed between them, quick and electric. Amanda’s lips curved in a subtle smile, her eyes bright with unspoken relief. Sarah felt a surge of gratitude, her own expression softening for a moment before she turned back to face the judge.

Dr. Reed hugged Sarah. “We did it,” she whispered.

Harrison slumped in his chair, jaw clenched.

Cheers erupted from the gallery. The judge banged his gavel.

“Order,” he said. “This court is adjourned.”

Sarah stood, shaky but smiling. Dr. Reed patted her shoulder.

“It’s over,” she said.

Sarah nodded, unable to speak.

People filed out, voices rising in the hallway outside.

## **Reaction**

The courthouse steps buzzed with activity. Reporters huddled, fingers flying over phones:

“TEACHER ACQUITTED IN LANDMARK EVOLUTION TRIAL”

“JURY UPHOLDS ACADEMIC FREEDOM IN TENNESSEE”

“SCIENCE EDUCATION WINS IN CHEN CASE”

Harrison pushed through the crowd, tight-lipped. He ignored shouted questions.

Across town, the school board gathered. Johnson slumped in his chair.

“This changes everything,” he said.

Another member nodded. “We’ll need to revise our policies.”

Johnson sighed. “Let’s not rush. We need time to process this.”

At a bustling diner, Sarah, Tom, Reed, and Blackwell squeezed into a booth. Laughter punctuated their conversation.

Sarah raised her milkshake. “To science,” she said.

They clinked glasses.

“And to justice,” Reed added.

Tom grinned at Sarah. “I knew you’d win.”

Blackwell leaned back, smiling. “We all did good work.”

## **New Beginnings**

Sarah and Reed sat at a quiet cafe, sunlight streaming through the windows. Two weeks had passed since the trial.

“I’ve left the high school,” Sarah said, stirring her coffee.

Reed nodded. “What’s next?”

“I’ve been accepted to finish my PhD in biology at the University of Chicago. With Dr. Saunders.”

Reed’s eyes widened. “That’s fantastic, Sarah. Congratulations.”

Sarah smiled. “It feels right. And Tom’s coming with me.”

Reed leaned forward. “I’ve got news too. We’re working with the ACLU on a civil suit. Using your case as precedent to challenge the law’s constitutionality.”

“That sounds complicated,” Sarah said.

Reed waved her hand. “I’ll spare you the legalese. But we’re optimistic.”

They stood, ready to part ways.

“Thank you, for everything,” Sarah said.

Reed hugged her. “You did the hard part. We just helped you tell your story.”

Blackwell appeared, carrying files. She smiled at Sarah.

“Good luck in Chicago,” she said.

Sarah nodded. “And good luck with the lawsuit.”

She walked away, feeling lighter. The trial was over, but the fight for science education continued. It was in good hands with Dr. Reed.

